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Chemical additive ban targeting popular candies signed into California law

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(KTLA) — A bill that would ban additives used in popular candies and processed food was signed into California law by Gov. Gavin Newsom on Saturday.

The ban affects certain candies such as Peeps, Hot Tamales, and Dubble Bubble Twist Gum, along with thousands of other food products.

Authored by Assemblyman Jesse Gabriel (D-Encino), AB 418 prohibits the manufacture, sale and distribution of foods that contain Red Dye No. 3, potassium bromate, brominated vegetable oil, or propylparaben. Officials hailed the bill as a "first-of-its-kind legislation" in the U.S.

Gabriel's office says the bill would not lead to any products coming off the shelves, but would simply require manufacturers to adjust their formulas.

"The use of the banned chemicals has already been banned in the 27 nations in the European Union (EU) as well as many other countries due to scientific research linking them to significant health harms, including cancer, reproductive issues, and behavioral and developmental issues in children," Gabriel said.

Many major brands and manufacturers – including Coke, Pepsi, Gatorade, and Panera – have voluntarily stopped using the additives prohibited under AB 418, known as The California Food Safety Act, due to concerns about their impact on human health, Gabriel's office said.

In 1990, the FDA banned red dye No. 3 from cosmetics after it was linked to cancer in animals. Gabriel saw that as clear evidence that the agency had been too slow to act.

"The FDA looked at red dye No. 3, looked at the research and the science, and said, 'This is a carcinogen.' Yet 33 years later, it's still in our food supply, and it just kind of blows your mind."

The National Confectioners Association, which represents dozens of candy makers and chocolatiers, blasted the new law saying, "[it] replaces a uniform national food safety system with a patchwork of inconsistent state requirements created by legislative fiat that will increase food costs. This is a slippery slope that the FDA could prevent by engaging on this important topic."

The law, the NCA insists, treads into territory that should be managed by the federal government, not states.

"They're making decisions based on soundbites rather than science. Governor Newsom's approval of this bill will undermine consumer confidence and create confusion around food safety," the trade group said.

Implementation of the ban won't occur until 2027 to allow food companies enough time to negotiate new contracts and make the necessary recipe changes.

Gabriel said there was enough support to advance the bill as originally drafted, but a fifth chemical, titanium dioxide, was dropped in an effort to obtain more widespread bipartisan support.

Titanium dioxide is a color additive that makes products more "visually appealing" and helps prevent pigment from losing its luster over time. The ingredient's exclusion from the bill, however, means that Skittles and other candies that use the chemical won't have to make any changes or recipe tweaks to be compliant with California law.

"Things like this aren't partisan. They're common sense," said former governor and sports and fitness icon Arnold Schwarzenegger, who endorsed AB 418 in his daily Pump Club Newsletter. "I'm a small government guy. But I've also seen that sometimes, in a world where every big industry has an army of lobbyists, and our kids have no one fighting for them, government has to step in."

"The Governor's signature today represents a huge step forward in our effort to protect children and families in California from dangerous and toxic chemicals in our food supply," said Assemblymember Jesse Gabriel. "It's unacceptable that the U.S. is so far behind the rest of the world when it comes to food safety."

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